

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
ANGEL TORRES,

Plaintiff,

-against-

THE CITY OF NEW YORK,
P.O. KIERON RAMDEEN, DET. GARY PORTER,
SGT. SEAN LYNCH and UNDERCOVER OFFICER
JOHN DOE,

Defendants.
----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 25, 2015

SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

Plaintiff designates
Bronx County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

2015 MAR -5 AM 11:30
COUNTY CLERK
BRONX COUNTY

RECEIVED

To:

The City of New York, 100 Church St., New York, NY 10007

P.O. Kieron Ramdeen, c/o Narcotics Borough Bronx, One Police Plaza, Rm. 1100, NYC 10007

Det. Gary Porter: c/o Narcotics Borough Bronx, One Police Plaza, Rm. 1100, NYC 10007

Sgt. Sean Lynch: c/o Narcotics Borough Bronx, One Police Plaza, Rm. 1100, NYC 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
ANGEL TORRES,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
P.O. KIERON RAMDEEN, DET. GARY PORTER,
SGT. SEAN LYNCH and UNDERCOVER OFFICER
JOHN DOE,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Bronx, City and State of New York.

2. That at all times herein mentioned, defendant The City of New York (hereinafter "the City") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. That prior to the institution of this action, and within ninety days of the dates on which the causes of action accrued herein, notices of claim and intention to sue were duly served upon and filed with the defendants herein, that more than thirty (30) days have elapsed since defendants were served with the notices of claim and intention to sue, and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the "NYPD").

5. That at all times herein mentioned, defendant P.O. Kieron Ramdeen (hereinafter

“Ramdeen”) was and is an officer employed by the NYPD.

6. That at all times herein mentioned, Ramdeen was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Ramdeen was acting under color of state law.

8. That at all times herein mentioned, defendant Det. Gary Porter (hereinafter “Porter”) was and is an officer employed by the NYPD.

9. That at all times herein mentioned, Porter was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Porter was acting under color of state law.

11. That at all times herein mentioned, defendant Sgt. Sean Lynch (hereinafter “Lynch”) was and is an officer employed by the NYPD.

12. That at all times herein mentioned, Lynch was acting within the course and scope of his employment with the NYPD.

13. That at all times herein mentioned, Lynch was acting under color of state law.

14. That at all times herein mentioned, defendant Undercover Officer John Doe (hereinafter “Doe”), was and is an undercover officer employed by the NYPD, and whose name is unknown to plaintiff and therefore is designated herein as “John Doe.”

15. That at all times herein mentioned, Doe was acting within the course and scope of his employment with the NYPD.

16. That at all times herein mentioned, Doe was acting under color of state law.

THE FACTS

17. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

18. That on May 23, 2014, inside the building and premises known and designated as 65 East Tremont Avenue, in the County of Bronx, City and State of New York, the City, by and

through its officers, agents, servants and/or employees, including Ramdeen, Porter, Lynch, and Doe (hereinafter referred to collectively as "the officers"), forcibly stopped plaintiff at gunpoint and then frisked, searched, handcuffed, detained, and arrested plaintiff, all without plaintiff's consent and without probable cause or reasonable suspicion that plaintiff had committed any crime or violation.

19. That as a result of the aforementioned actions by the officers, plaintiff was placed in apprehension of imminent harmful or offensive bodily contact.

20. That after arresting plaintiff, the officers imprisoned and incarcerated plaintiff and/or caused plaintiff to be imprisoned and incarcerated against his will at various sites, including in a police vehicle, a police precinct, and Central Booking, until plaintiff was released from custody on the evening of May 24, 2014.

21. That during his imprisonment and incarceration, plaintiff was compelled to undergo a strip search.

22. That on May 24, 2014, the City, by and through the officers, including Porter, Lynch, Ramdeen, and Doe, commenced and/or caused to be commenced against plaintiff a criminal prosecution by charging plaintiff and/or causing plaintiff to be charged with various crimes of which he was innocent and of which the officers knew plaintiff to be innocent.

23. That in support of the aforesaid criminal prosecution, the officers made statements and accusations about plaintiff that they knew to be false.

24. That among the knowingly false statements made by the officers in support of the prosecution of plaintiff were a statement by Doe that he observed plaintiff and "Joe Lopez" engage in a brief conversation, after which Joe Lopez handed plaintiff money in exchange for several small objects, a statement by Ramdeen that plaintiff knowingly and unlawfully sold a narcotic drug, possessed a narcotic drug with intent to sell it, and possessed a controlled substance

with intent to sell it, and a statement by Ramdeen that Doe told Ramdeen that he observed plaintiff and "Joe Lopez" engage in a brief conversation, after which Joe Lopez handed plaintiff money in exchange for several small objects.

25. That as a result of the aforesaid prosecution, plaintiff was compelled to appear in court on several occasions and was deprived of his freedom and liberty and restricted in his ability to travel.

26. That on or about December 17, 2014, all criminal charges against plaintiff were dismissed on the merits and the criminal prosecution terminated favorably to plaintiff.

27. That the aforesaid actions by the City, including the officers, were intentional and malicious in nature.

28. That each of the officers observed the illegal and unconstitutional acts of his fellow officers, each had an opportunity to intervene to prevent or stop those acts, and each intentionally failed and refused to intervene to prevent or stop those acts.

29. That the aforesaid actions by the City, including the officers, were in furtherance of an illegal and unconstitutional policy of the NYPD that requires officers, under threat of adverse employment consequences, to stop, question, search, and arrest specific numbers of individuals.

30. That upon information and belief, prior to May 23, 2014, the officers repeatedly engaged in similar conduct in violation of citizens' rights, including stopping and frisking citizens without probable cause or reasonable suspicion and arresting citizens without probable cause and criminally charging those citizens with crimes of which the officers knew the citizens to be innocent.

31. That upon information and belief, the City intentionally ignored and/or was

deliberately indifferent to the officers' pattern of illegal and unconstitutional conduct towards citizens.

32. That as a further result of the foregoing actions of defendants, plaintiff suffered and continue to suffer physical, emotional, and psychological injuries, loss of liberty, embarrassment, and humiliation, endured and continues to endure pain and suffering and loss of enjoyment of life, and has suffered economic loss.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS

(False Arrest and Imprisonment)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforementioned actions of the officers constitute a false arrest and false imprisonment of plaintiff, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST DEFENDANTS

RAMDEEN, PORTER, LYNCH and DOE

(42 USC § 1983 Claim Arising From False Arrest and Imprisonment)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforementioned false arrest and false imprisonment of plaintiff constitute an illegal seizure and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the US Constitution, and entitles plaintiff to recover damages pursuant to 42 USC § 1983.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Assault and Battery)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforementioned actions of the officers constitute an assault and battery of plaintiff, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

RAMDEEN, PORTER, LYNCH and DOE

(42 USC § 1983 Claim Arising From Assault and Battery)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforementioned assault and battery of plaintiff constitute an illegal seizure and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the US Constitution, and entitles plaintiff to recover damages pursuant to 42 USC § 1983.

FIFTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Malicious Prosecution)

41. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

42. That the aforementioned actions of the officers constitute a malicious prosecution of plaintiff, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION AGAINST DEFENDANTS

RAMDEEN, PORTER, LYNCH and DOE

(42 USC § 1983 Claim Arising From Malicious Prosecution)

43. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

44. That the aforementioned malicious prosecution of plaintiff constitutes an illegal seizure and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the US Constitution, and entitles plaintiff to recover damages pursuant to 42 USC § 1983.

SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

RAMDEEN, PORTER, LYNCH and DOE

(42 USC § 1983 Claim Arising From Failure to Intervene)

45. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

46. That the aforementioned failure of these defendants to intervene to stop and/or prevent the illegal and unconstitutional actions of his fellow officers resulted in the illegal seizures and deprivations of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the US Constitution, and entitles plaintiff to recover damages pursuant to 42 USC § 1983.

EIGHTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training, and Retention)

46. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

48. That the aforesaid incidents and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention of

the officers.

NINTH CAUSE OF ACTION AGAINST THE CITY
(“Monell” Claim)

49. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

50. That the aforesaid actions by the officers subject the City to liability under 42 USC § 1983, pursuant to *Monell v. Dep’t of Social Servs. of N.Y.C.*, 436 U.S. 658.

51. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

.....

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against the officers, and attorneys’ fees against all defendants pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
February 25, 2015

Yours, etc.
SIVIN & MILLER, LLP

By _____

Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
February 25, 2015



EDWARD SIVIN

Index No.

Year 2015

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ANGEL TORRES,

Plaintiff,

-against-

THE CITY OF NEW YORK, et. al.,

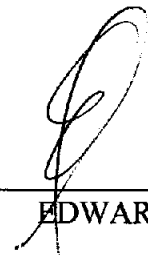
Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
February 25, 2015